MATRIX VISION GmbH - Special Software License Agreement for mvIMPACT Acquire SDK camera driver software

This Software License Agreement (Agreement) is a special legal Agreement between you and MATRIX VISION GmbH (MV) for the MATRIX VISION software product mvIMPACT Acquire SDK, which includes computer software and may include associated media, printed materials or online or electronic documentation. In addition to the provisions herein, the General Terms and Conditions (“Allgemeine Geschäftsbedingungen”) of MV, current status: November 2015, are applicable. In case of a conflict, the Agreement herein shall prevail.
The license grant, is only valid, if you accept this Agreement and the General Terms and Conditions (“Allgemeine Geschäftsbedingungen”) of MV, current status: November 2015, and in particular do not refer to or use General Conditions that in any way are in conflict with or provide additional conditions not provided herein. You may contact MV to obtain the current version (http://www.matrix-vision.com/de-agb.html but URL is subject to change).

1. DEFINITIONS

“Software” means all of the contents of the files provided by MV to you under the product name mvIMPACT Acquire SDK.

“Documentation” means the User's Guides, User's Manuals and Reference Manuals, if any, accompanying delivery of the Software. Documentation may be delivered in printed and/or electronic and/or online forms.

2. LICENSE GRANT

The licensed Software and Documentation shall at all times remain the property of MV and/or its licensors, and you, as licensee, shall have no right, title, or interest in the Software, except as expressly set forth in this Agreement.

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MV grants to you a nonexclusive license to install and use the Software as provided herein on the applicable hardware.

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MV grants to you free of charge, as a courtesy a nonexclusive, revocable license to install and use the Software as provided herein with third party hardware, i.e. hardware not manufactured or delivered to you by MV under the following conditions:

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- The provisions related to Donations (sec. 516 et seq. of the German Civil Code) shall apply instead of the provisions regarding defects and liability of the the General Terms and Conditions (“Allgemeine Geschäftsbedingungen”) of MV and this agreement..

2.3. COMPLIANCE WITH LICENSE

You agree that upon request from MV or MV's authorized representative, you will within thirty (30) days fully document and certify that use of any and all MV Software at the time of the request is in conformity with your valid license from MV.

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You may make and use a reasonable number of copies of any Documentation, provided that such copies shall be used only for internal purposes and are not to be republished or distributed (either in hard copy or electronic form) beyond your premises.

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You are responsible for providing the system environment in accordance with the system requirements for Software.

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You may sublicense the Software only upon prior written consent by MV. In case such consent is given by MV to you, you are obliged to sublicense the Software with a license whose terms and conditions are at least as restrictive as the terms in this Agreement.

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Except as may be expressly prohibited herein, you may transfer all your rights to use the Software to a third party provided that (1) you also transfer all your obligations out of this Agreement, the Software and all other software bundled with the Software, including all copies, updates and prior versions, to such third party; (2) you retain no copies, including backups and copies stored on a computer; and (3) the receiving party accepts the terms and conditions upon which you legally obtained a license to the Software.

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You may make a reasonable number of copies of the Software to backup devices such as hard disks, optical media, or tape and a reasonable number of physical DVD media backup copies of the Software solely to replace the original copy provided to you if the original copy is damaged or destroyed. All rights not specifically granted to you herein are retained by MV.

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You may not reverse engineer, decompile, disassemble or otherwise attempt to discover the source code of the Software, except to the extent you may be expressly and mandatorily permitted under applicable law, it is essential to do so in order to achieve interoperability of the Software with another software program, and you have first requested MV to provide the information necessary to achieve such interoperability and MV has not made such information available. Any information supplied by MV or obtained by you, as permitted hereunder, may only be used by you for the purpose described herein and may not be disclosed to any third party.

You may not modify, adapt, or otherwise alter the Software except as expressly permitted herein. In particular, you may not attempt to remove the license protection mechanism from the Software.

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This Agreement does not grant you any rights in connection with any trademarks or service marks of MV or of MV´s suppliers. You may not use the name, trademarks, or service marks of MV or of MV´s suppliers in any advertising, promotional literature or any other material, whether in written, electronic, or other form, distributed to any third party, except as expressly permitted by MV.

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If the Software is an upgrade to a previous version of the Software, any obligation MV may have to support the previous version of the Software may be ended within one (1) year upon availability of the upgrade.

3.7. LICENSE FOR THIRD PARTY SOFTWARE

MV has been granted licenses to distribute certain third party software. As a condition of those licenses, MV is required to distribute the software subject to specific terms and conditions, which may be different from or additional to those contained herein for MV's Software. You understand and agree that acceptance of this Agreement also confirms your acceptance of the applicable provisions for use, including the restrictions on use, of such third party software. You may contact MV to obtain the current applicable provisions. Any breach of the applicable provisions of any third party's license terms shall also be considered a material breach of this Agreement.

3.8. TERMINATION

Without prejudice to any other rights, MV may terminate this Agreement for good cause if you fail to comply with the terms and conditions of this Agreement. In such event, you must destroy all copies of the Software and all of its components.

4. INTELLECTUAL PROPERTY RIGHTS

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5. RIGHTS IN CASE OF DEFECTS

In addition to the provisions regarding the rights in case of defects of the General Terms and Conditions ("Allgemeine Geschäftsbedingungen") of MV the following provisions shall be applicable:

5.1 Defects must be notified in writing and, unless it is an unreasonable burden, with a comprehensible description of the error symptoms, as far as possible evidenced by written recordings, hard copies or other documents demonstrating the defects. The notification of the defect should enable the reproduction of the error.

5.2 Subsequent performance may also take place through the delivery or installation of a new program version or a reasonable work-around of the Software. If the defect does not or not substantially impair the functionality, then MV is entitled, to remedy the defect by delivering a new version or an update within a reasonable time as part of its version, update and upgrade planning.

9. HAZARDOUS USES

The Software is not designed and/or intended for use in connection with any application requiring fail-safe performance such as the operation of nuclear power facilities, air traffic control or navigation systems, weapon control systems, life support systems, or any other system whose failure could lead to death, personal injury, or severe physical or environmental damage. You agree that MV will have no responsibility of any nature, and you are solely responsible for any expense, loss, injury or damage incurred as a result of such use of the Software.

10. ENTIRE AGREEMENT

This Agreement contains the entire, final and exclusive understanding between MV and you, and may not be modified or amended except by written instrument, executed by authorized representatives of MV and you. Amendments or additions to this Agreement must be made in writing to be effective. This shall also apply to amendments of this written form requirement.

11. APPLICABLE LAW

This Agreement is governed by the laws of Germany except for the UN Sales Convention (United Nations Convention on Contracts for the International Sale of Goods dated 11.4.1980).

12. LEGAL VENUE

The courts in Stuttgart/Germany shall have exclusive jurisdiction over all disputes under and in connection with this Agreement, provided that you are a merchant within the meaning of the German Commercial Code or if upon the commencement of legal proceedings, you have no place of business or ordinary residence in the Federal Republic of Germany.

13. SEVERABILITY

If any provisions of this license is held to be illegal, invalid or enforceable for any reason, then such provision will be enforced to the maximum extent permissible and the remainder of the provisions of this license will remain in full force and effect.

Status: November 2015